

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: March 25, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

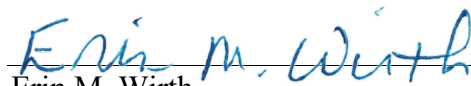
ORDER GRANTING JOINT MOTION TO EXTEND DEADLINE

On March 24, 2025, the parties filed a joint motion seeking to extend the deadline for submission of discovery disputes from March 31, 2025, to April 14, 2025 (“Motion”). The parties state that they have exchanged initial discovery requests and are meeting to narrow requests and address objections. Motion at 2.

The parties are encouraged to work together to narrow their discovery requests. Moreover, the parties are instructed to discuss the possibility of stipulating to relevant facts. For example, the parties could stipulate to the relevant service contract and amendments as well as the number of containers shipped. Regarding demurrage and detention, the parties could stipulate to the dates, demurrage and detention charges, and ports utilized for the containers at issue. The parties are encouraged to focus on the elements of the claims alleged.

Moreover, the parties are encouraged to discuss settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties’ progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

Good cause having been stated, it is hereby ordered that the joint motion be **GRANTED**. The deadline for submission of discovery disputes is extended to April 14, 2025. The other deadlines in the Scheduling Order are not changed.


Erin M. Wirth
Chief Administrative Law Judge